DIVISION BENCH ITEM NO.2

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA (CAA) No.11/ALD/2023
(First Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 21st December, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**RANILIA PROPERTIES PVT. LTD. WITH BAKERS AGRI FOODS PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Anil Kumar, PCS *: For the Applicant Company*

ORDER

Ld. Authorized Representative representing the Applicant Company is present physically.

1. This is a first motion petition seeking merger of the Transferor Company with the Transferee Company. It is *interlia* contended by the Ld. Authorized Representative representing the Applicants that there are three Financial Creditors of the Transferee Company, out of which the two Secured Creditors namely HDFC Bank have given their consent to the scheme and the said consent is filed along with the main application. However, there is no Resolution in favour of the persons who have filed these affidavits giving consent on behalf of the HDFC Bank to the scheme.

2. Ld. Authorized Representative representing the Applicants seeks a short adjournment to place on record the Resolution passed by the HDFC Bank or any delegated powers in favour of the persons, who have filed the consent affidavits duly authorizing them to that effect.

-Sd- ***-Sd-***

3. It is also further stated by the Ld. Authorized Representative representing the Applicants that in so far as the consent of the Unsecured Creditors of the Transferee Company is concerned, about 37 Unsecured Creditors have given their consents constituting 93.76. He further states that out of these Unsecured Creditors, three Unsecured Creditors namely Aditya Flexipack Pvt. Ltd., Suman Polymers Pvt. Ltd. and Kanpur Edibles Pvt. Ltd., there are no Resolution passed/ attached with the main application. He also seeks time to place on record the corresponding Resolutions.

4. Let the needful be done within a period of two weeks and the matter is adjourned for further hearing on 18th January, 2024.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

21st December, 2023

Kavya Prakash Srivastava
(Stenographer)